



File No.: EXP202209878

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on August 29, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

(...) it is stated that she is the mother of the respondent and that both live on a property with different dwellings, although the respondent is residing in one of the dwellings precariously, without a valid title for it, having installed surveillance cameras in that dwelling, without the authorization of the complainant as the legitimate owner, aimed at areas belonging to the complainant's dwelling, without being properly marked with the required informative signs of the monitored area.

Along with the notification, documentary evidence is provided that proves the presence of the camera(s) in the common area of the property where the dwellings in question are located.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on 21/09/22, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received in a timely manner as evidenced by the acknowledgment of receipt in the file.

THIRD: On 15/10/22 and 22/12/22, written submissions were received from the respondent acknowledging the presence of the cameras, providing various images showing the presence of a webcam aimed at a common area where we assume the respondent's dwelling is located.

FOURTH: On November 29, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

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FIFTH: On April 27, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Articles 5.1.c) and 13 of the GDPR, classified under Article 83.5 letters a) and b) of the GDPR.

SIXTH: On 14/07/23, an Instruction Diligence was issued requiring the respondent to complete the allegations and justify the legality of the system, to which no response has been provided.

SEVENTH: On 25/08/23, a was issued proposing a sanction of €1000 (€500 + €500) for having a surveillance camera without the proper signage, confirming the infringement of Articles 5.1 c) and 13 of the GDPR, without clarifying any of the issues raised by this agency.

EIGHTH: On 19/09/23, a written submission of allegations was received from the respondent stating the following:

“As I previously stated, the webcam that I had set up stopped working on 03/06/23 (attached photograph) only focused on the entrance of my private dwelling and only on the private staircase. The webcam has never recorded anything that belongs to Ms. A.A.A.'s dwelling, nor any common area, it only records my entrance and private staircase.

I also inform that Ms. A.A.A. has a disability that prevents her from carrying out acts of administration and disposition of her person (attached Judgment page 7).

As of today, 14/09/23, there is no camera and above all, what has been recorded previously is my entrance to the dwelling and my private area."

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint dated 29/08/22 through which the following is conveyed:

(...) it is stated that she is the mother of the respondent and that both live on a property with different dwellings, although the respondent is residing in one of the dwellings precariously, without a valid title for it, having installed surveillance cameras in that dwelling, without the authorization of the complainant as the legitimate owner, aimed at areas belonging to the complainant's dwelling, without being properly marked with the required informative signs of the monitored area.

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Along with the notification, documentary evidence is provided that certifies the presence of the camera(s) in the common area of the plot where the houses in question are located.

Second. It is established that the main responsible party is B.B.B., with ID ***NIF.1, who does not deny having installed a Web cam.

Third. It is established that there is a video surveillance camera system (Web cam) that is not properly signposted.

Fourth. There is no evidence of the processing of data of the complaining party and/or any third party, nor has any means of proof confirmed otherwise.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In this case, the complaint is examined regarding the presence of video surveillance cameras that may be affecting common areas without justified cause, lacking authorized permission for this.

Since this is not a Community of property owners but rather homes on the same plot with familial relationships among the relatives, it is advisable that the cameras are only directed towards the exclusive private areas of each co-owner, without affecting the freely accessible areas, which are considered excessive in terms of "processing personal data."

Article 5.1 c) of the GDPR states the following: Personal data shall be: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be directed towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause. Moreover, such devices cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps.

It is worth remembering that even in the case of a "simulated" camera, it must be preferably directed towards private space, as it is considered that such devices may affect the privacy of third parties, who feel intimidated by it under the belief of being subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or transit of third parties, except in cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

III

In accordance with the initial evidence available in this sanctioning procedure, it was considered that the respondent had a video surveillance camera system affecting freely accessible common areas without justified cause for doing so, lacking any information in this regard.

On 19/09/23, a written clarification was received from the respondent, stating that they acknowledge the installation of a camera (Web cam) "towards the entrance of their private home and staircase," these being external areas to the home itself.

This agency takes into account the arguments presented regarding serious family conflicts, some of which have been widely litigated, to consider the measure proportionate, that is, that the camera, given the lack of relationship between the parties, may capture the space located in front of the home as a landing, since access to each home is individual through a common staircase.

Thus, the device in question is considered an appropriate measure for the protection of the landing space located in front of the home, thereby avoiding situations of serious danger for the inhabitants and fulfilling a function in accordance with its purpose.

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While there is a staircase providing access to the residence of the respondent, access to the residence is exclusive as it is a single-story building, which justifies, based on the arguments of the respondent, that situations of "danger" may occur in the aforementioned area, thereby justifying the presence of a camera to capture what may happen there (e.g., assaults, coercions, threats, etc.).

IV

It is also noted that there are no informational signs in a visible area indicating that it is a video-monitored zone.

"The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informational device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679.

An access code or internet address to this information may also be included in the informational device" (*the bold text belongs to this agency)—art. 22 section 4 of the LOPDGDD--.

The aforementioned facts constitute a violation of the content of Article 13 of the GDPR, due to the lack of informational sign(s) with an effective address to which one could direct inquiries or indicate, if applicable, the main responsible party for the processing of the data.

Article 13 of the GDPR "Information to be provided when personal data are collected from the data subject" 1. When personal data relating to a data subject are obtained from that data subject, the data controller shall provide all the information indicated below at the time the data are obtained: a) the identity and contact details of the controller and, where applicable, of the controller's representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72 section 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements "shall prescribe after three years" and in particular the following: h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law.

While this agency has taken into account the arguments of the respondent regarding the presence of the camera, considering it a proportionate measure, as it affects a transit area, given that the staircase and landing, although primarily accessed by the respondent, cannot be considered as , the presence of an informational sign becomes necessary to inform that it is a video-monitored zone, lacking such sign both at the time the events occurred and at the present time.

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V

Article 83.5 of the GDPR states the following: "Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the rights of data subjects under Articles 12 to 22 (...).

In justifying the sanction, it is taken into account that this involves individuals with various family conflicts, although the respondent is already aware of the actions of this agency as they have previously been a complainant for similar facts, and the actions to prove legality are not considered sufficient, considering the serious negligent conduct (Article 83.2 a) and b) GDPR), which results in a sanction of €500 for the violation of Article 13 GDPR described, a sanction situated at the lower end of the scale for this type of conduct based on the criteria of this agency.

VI

The text of the resolution establishes what the violations committed have been and the facts that have led to the breach of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

Since the respondent states that "as of 14/09/23 there is no camera," no measures should be imposed regarding the informational signage, reminding that in case it is reinstalled, they must proceed to inform about its presence in the access area (e.g., in the landing itself or a sign located at the door of their residence indicating the responsible party and how to exercise the rights), and they must take a photograph with date and time in case the facts need to be analyzed due to a new complaint against it. This Agency finally warns that it should not be instrumentalized with issues pertaining to other areas of law, as these should be resolved in court, recommending a redirection of the relationship to the minimum rules of neighborhood coexistence or requesting the necessary measures in court.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on Ms. B.B.B., with NIF ***NIF.1, for a violation of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €500.

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SECOND: NOTIFY this resolution to Ms. B.B.B.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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